

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

FORMUKLEEN, INC., *Complainant*

v.

TOP SHIPPING SYSTEMS, CORP., *Respondent*.

DOCKET NO. 25-08

Served: July 11, 2025

ORDER OF: Richard AMBROW, *Administrative Law Judge*.

**ORDER DENYING WITHOUT PREJUDICE MOTION FOR INTERIM RELIEF TO PREVENT
SPOILIATION AND INTIMIDATION**

On July 10, 2025, Complainant filed a Motion for Interim Relief to Prevent Spoliation and Intimidation (“Motion for Relief”), as well as a Notice of Threatened Spoliation and Witness Intimidation (“Notice of Threat”). In the Motion for Relief, Complainant alleges that Respondent’s representative threatened to destroy cargo and evidence as early as Monday.

Under Commission Rule 71(a), before a party files a non-dispositive motion, the parties must attempt to discuss the anticipated motion with each other in a good faith effort to determine whether there is any opposition to the relief sought, and the moving party “must state within the body of the motion what attempt was made or that the discussion occurred and whether the motion is opposed.” (46 C.F.R. § 502.71(a)). Complainant’s Motion for Relief does not indicate that such a discussion occurred.

Complainant acknowledges that it does not have written evidence to support the allegations in its Motion for Relief. (*See* Motion for Relief, at 2, n.1).

Because the Motion for Relief does not contain the required statement of consultation, and because it lacks supporting evidence, the Motion for Relief is **DENIED** without prejudice.

The parties are reminded that there is an obligation to preserve evidence and to cooperate with discovery obligations. (*See, e.g., MSC Mediterranean Shipping Co. S.A. v. Fed. Maritime Comm’n*, No. 24-1007, 2025 WL 1739466 (D.C. Cir. Jun. 24, 2025) (affirming a default judgment imposing reparations against a carrier that did not comply with discovery obligations)).

The parties are also reminded that filings are properly made to the Office of the Secretary. (Initial Order, at 2, ¶ 5). The parties are encouraged to file documents with the Office of the Secretary via email at secretary@fmc.gov. (*Id.*, at 2, ¶ 3). These emails must include a copy to the opposing party, and a courtesy copy to the presiding judge at judges@fmc.gov. (*Id.*).

Richard C.

Ambrow Jr -S

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Richard Ambrow
Administrative Law Judge